

Jerral Sease (JD/ap))

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

JERRAL SEASE,

Plaintiff,

: Plaintiff designates
Kings County
: as place of trial

-against-

DETECTIVE OMAR BOSTIC,
Shield No. 2282, POLICE OFFICER
GLENN GIBBONS, Shield No. 6479,
DETECTIVE JOSEPH CONDELLO,
shield number unknown, POLICE
OFFICER JOHN DOE #1, name and shield
number unknown, POLICE OFFICER
JOHN DOE #2, name and shield number
unknown, and CITY OF NEW YORK,

: The basis of venue is
location of occurrence

: SUMMONS

: Filed: August 14, 2018

: Plaintiff resides at 354
354 Hunter Street
: Ossining, New York 10562

Defendants.

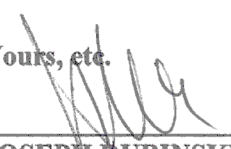
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the plaintiff's attorney within twenty days after the service of this Summons, exclusive of the day of service, or within thirty days after service is complete if this Summons is not personally delivered to you within the State of New York. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
August 14, 2018

Yours, etc.


JOSEPH DUBINSKY, ESQ.
Attorney for Plaintiff
225 Broadway-41st Floor
New York, New York 10007
(212) 571-6000
(917) 312-6955

**TO: THE CITY OF NEW YORK
The New York City Law Department
100 Church Street
New York, New York 10007**

**DETECTIVE OMAR BOSTIC, Shield No. 2282,
60TH Precinct, New York City Police Department
2951 West 8th Street
Brooklyn, New York 11224-3615**

**POLICE OFFICER GLENN GIBBONS, Shield No. 6479,
DETECTIVE JOSEPH CONDELLO, shield number unknown,
POLICE OFFICER JOHN DOE #1, name and shield number unknown,
POLICE OFFICER JOHN DOE #2, name and shield number unknown,
addresses of all, presently unknown.**

Jerral Sease (JD/ap)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

JERRAL SEASE,

:

Plaintiff,

:

Index No.

-against-

:

DETECTIVE OMAR BOSTIC, :
Shield No. 2282, POLICE OFFICER :
GLENN GIBBONS, Shield No. 6479, :
DETECTIVE JOSEPH CONDELLO , :
Shield Number unknown, POLICE :
OFFICER JOHN DOE #1, name and :
shield number unknown, POLICE OFFICER :
JOHN DOE # 2, name and shield number :
unknown, and THE CITY OF NEW YORK, :

Defendants,

:

-----X

Plaintiff, by his attorney, Joseph Dubinsky, as and for a Verified Complaint,
alleges upon information and belief , as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JERRAL SEASE**

- 1, Plaintiff presently resides at 354 Hunter Street, Ossening, New York 10562.
2. At the time of occurrence, plaintiff was a resident of the County of Kings, State of New York.
3. The causes of action alleged herein arose in the County of Kings, State of New York.
4. This action falls within one or more of the exceptions set forth in CPLR §1602.
5. At all times hereafter mentioned, defendant The City of New York was and is a municipal corporation organized and existing pursuant to the laws of the State of New

York.

6. Prior to commencement of this action and within ninety (90) days after the happening of the events which form the basis of this lawsuit, a Notice of Claim setting forth the time, place and circumstances surrounding the occurrence was duly filed with defendant The City of New York.

7. More than thirty (30) days have elapsed since the Notice of Claim upon which this action is founded was presented to the aforementioned defendant for adjustment and defendant has neglected or refused to make any adjustment or payment thereon, and no settlement on this claim has been made.

8. This action is commenced within the time prescribed by statute for the commencement of lawsuits and in accordance with all legal requirements.

9. At all times hereafter mentioned, defendant The City of New York, through its agents, servants and employees, owned, operated, maintained and controlled the New York City Police Department.

10. At all times hereafter mentioned, defendant Detective Omar Bostic, Shield No. 2282, was an employee of defendant The City of New York as a member of the New York City Police Department.

11. At all times hereafter mentioned, defendant Police Officer Glenn Gibbons, Shield No. 6479, was an employee of defendant The City of New York as a member of the New York City Police Department.

12. At all times hereafter mentioned, defendant Police Officer Joseph Condello, shield number unknown, was an employee of defendant The City of New York as a member of the New York City Police Department.

13. At all times hereafter mentioned, defendant Police Officer John Doe #1, name and shield number unknown, was an employee of defendant The City of New York as a member of the New York City Police Department.

14. At all times hereafter mentioned, defendant Police Officer John Doe #2, name and shield number unknown, was an employee of defendant The City of New York as a member of the New York City Police Department.

15. At all times hereafter mentioned, defendant Detective Omar Bostic, Shield No. 2282, was assigned to Command 282, the 60th Precinct Detective Squad, of the New York City Police Department.

16. At all times hereafter mentioned, defendant Police Officer Glenn Gibbons, Shield No. 6479, was assigned to Command 186, the "PBBS/ACU", of the New York City Police Department.

17. At all times hereafter mentioned, defendant Detective Joseph Condello, shield number unknown, was assigned to Command 580, the Warrant Section, of the New York City Police Department.

18. At all times hereafter mentioned, defendant Police Officer John Doe #1, name and shield number unknown, was believed to be assigned to the aforesaid Command 282, Command 186 or Command 580 of the New York City Police Department.

19. At all times hereafter mentioned, defendant Police Officer John Doe #2, name and shield number unknown, was believed to be assigned to the aforesaid Command 282, Command 186 or Command 580 of the New York City Police Department.

20. At all times hereafter mentioned, defendant Detective Omar Bostic, Shield No. 2282, was acting within the scope of his employment as an employee of defendant The City

of New York.

21. At all times hereafter mentioned, defendant Police Officer Glenn Gibbons, Shield No. 6479, was acting within the scope of his employment as an employee of defendant The City of New York.

22. At all times hereafter mentioned, defendant Police Officer Joseph Condello, shield number unknown, was acting within the scope of his employment as an employee of defendant The City of New York.

23. At all times hereafter mentioned, defendant Police Officer John Doe #1, name and shield number unknown, was acting within the scope of his employment as an employee of defendant The City of New York.

24. At all times hereafter mentioned, defendant Police Officer John Doe #2, name and shield number unknown, was acting within the scope of his employment as an employee of defendant The City of New York.

25. On August 15, 2017, at approximately 5:30 a.m., inside Apartment 6C at 2352 West 8th Street, Brooklyn, New York 11223, defendants, individually and/or through their agents, servants and employees, carelessly used excessive, unreasonable and unjustified force in arresting plaintiff, including by punching and/or striking him in the face in and around the area of the right eye and orbit while he was asleep and thereby committed he tort of negligence.

26. Plaintiff was thereafter arraigned in Criminal Court, Kings County, under Docket Number 2017-KN 845582, with defendant Detective Bostic, swearing to the Criminal Court Complaint.

27. The individual defendants herein are presently the subject of an on-going

investigation of the Internal Affairs Division of defendant The City of New York arising out of said arrest,

28. Plaintiff was free of culpable conduct relating to said arrest.

29. By reason of the foregoing, plaintiff sustained permanent serious physical injury, conscious pain and suffering and loss of enjoyment of life as well as healthcare expenses which will continue into the future.

30. By reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdiction of all lower courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JERRAL SEASE**

31. Plaintiff repeats and reiterates the allegations previously set forth in Paragraphs numbered "1" through "30" with the same force and effect as though fully and at length set forth herein.

32. By reason of the foregoing, defendants, individually and/or through their agents, servants and employees, intentionally subjected plaintiff to unreasonable and unjustifiable physical force without his consent and thereby committed the tort of battery.

33. By reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdiction of all lower courts of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JERRAL SEASE**

34. Plaintiff repeats and reiterates the allegations previously set forth in Paragraphs numbered "1" through "33" with the same force and effect as though fully and at length set forth herein.

35. By reason of the foregoing, defendants, individually and/or through their agents,

servants and employees, intentionally subjected plaintiff to outrageous conduct designed to cause severe emotional distress or in disregard of a substantial probability thereof and thereby committed the tort of intentional infliction of emotional distress.

36. By reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdiction of all lower Courts of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JERRAL SEASE**

37. Plaintiff repeats and reiterates the allegations previously set forth in Paragraphs numbered "1" through "36" with the same force and effect as though fully and at length set forth herein.

38. By reason of the foregoing, defendants, individually and/or through their agents, servants and employees, acting under color of statute, ordinance, regulation, custom and usages of the State of New York, deprived plaintiff of his civil rights guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution pursuant to 42 U.S.C. §1983.

39. By reason of the foregoing, plaintiff has been damaged in an amount in excess of the jurisdiction of all lower courts of the State of New York and is entitled to such statutory legal fees pursuant to 42 U.S.C. §1988 as the court will allow.

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JERRAL SEASE**

40. Plaintiff repeats and reiterates the allegations previously set forth in Paragraphs numbered "1" through "39" with the same force and effect as though fully and at length set forth herein.

41. By reason of the foregoing, defendants, including through their agents, servants

and employees, acted in intentional, knowing, willful, wanton and reckless disregard of plaintiff's well-being and/or civil rights.

42. As a result of the foregoing, plaintiff is entitled to punitive damages in an amount in excess of the jurisdiction of all lower courts of the State of New York.

WHEREFORE, plaintiff Jerral Sease demands judgment against the defendants on the First, Second, Third, Fourth and Fifth Causes of Action in an amount in excess of the jurisdiction of all lower courts of the State of New York, including legal fees pursuant to 42 U.S.C. §1988 on the Fourth Cause of Action and punitive damages on the Sixth Cause of Action.

Dated: New York, New York
August 14, 2018

Yours, etc.



JOSEPH DUBINSKY, ESQ.
Attorney for Plaintiff
225 Broadway-41st Floor
New York, New York 10007
(212) 571-6000
(917) 312-6955

TO: THE CITY OF NEW YORK
The New York City Law Department
100 Church Street
New York, New York 10007

DETECTIVE OMAR BOSTIC, Shield No. 2282,
60TH Precinct, New York City Police Department
2951 West 8th Street
Brooklyn, New York 11224-3615

**POLICE OFFICER GLENN GIBBONS, Shield No. 6479,
DETECTIVE JOSEPH CONDELLO, shield number unknown,
POLICE OFFICER JOHN DOE #1 name and shield number unknown and
POLICE OFFICER JOHN DOE #2, name and shield number unknown,
addresses of all, presently unknown.**

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the courts of the State of New York, affirms the following to be true under penalties of perjury: affirmant is the attorney of record for plaintiff in the within action; affirmant has read the foregoing Summons and Verified Complaint and knows the contents thereof; and the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters affirmant believes them to be true. This Verification is made by affirmant and not by plaintiff because plaintiff does not reside in the county where affirmant maintains his office. The grounds of affirmant's belief as to all matters not stated to be based upon affirmant's knowledge are information and documents contained in the office file maintained by affirmant relative to this case.

Dated: New York, New York
August 14, 2018



JOSEPH DUBINSKY, ESQ.

Jerral Sease (JD/ap)

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

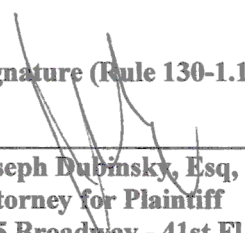
-----X
JERRAL SEASE,
Plaintiff, : INDEX NO.
-against- :
DETECTIVE OMAR BOSTIC, :
Shield No. 2282, POLICE OFFICER :
GLENN GIBBONS, Shield No. 6479, :
DETECTIVE JOSEPH CONDELLO ,
shield number unknown, POLICE
OFFICER JOHN DOE #1, name and
shield number unknown, POLICE OFFICER
JOHN DOE # 2, name and shield number
unknown, and THE CITY OF NEW YORK,

Defendants. :

-----X

SUMMONS AND VERIFIED COMPLAINT

Signature (Rule 130-1.1a):



Joseph Dubinsky, Esq,
Attorney for Plaintiff
225 Broadway - 41st Fl.
New York, New York 10007
(212) 571-6000
(917) 312-6955